



COMMERCIAL LEASE ADDENDUM FOR TENANT'S RIGHT OF FIRST REFUSAL

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ADDENDUM TO THE COMMERCIAL LEASE BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE LEASED PREMISES AT _____

A. "Additional space" means all or part of the following areas along with all its improvements:

- ☐ (1) the following floors in the Property: _____.
- ☐ (2) the following suites in the Property, presently identified, as: _____.
- ☐ (3) _____.

The parties agree that the rentable area of the additional space may not equal the actual or useable area within the additional space and may include an allocation of common areas in the Property.

B. If Landlord receives an acceptable written offer from another person to lease the additional space at a time when the above-referenced lease is in effect, Landlord will notify Tenant of the offer. Not later than 7 days after Tenant receives Landlord's notice of the offer, Tenant may notify Landlord that Tenant will lease the additional space identified in the offer under the same terms and conditions in the offer. If Tenant notifies Landlord that Tenant will lease the additional space identified in the offer, Tenant must execute a written lease for the additional space identified in the offer or amend the above-referenced lease, as Landlord may require, not later than _____ days after Tenant receives Landlord's notice. If Tenant fails to timely comply with this paragraph, Landlord may lease the additional space identified in the offer to the person who made the offer. If Tenant does not exercise its right to lease the additional space identified in the offer and Landlord does not lease the additional space identified in the offer to the person who made the offer, Tenant ☐ does ☐ does not retain the right of refusal under this addendum for any subsequent offers Landlord receives for the additional space identified in the offer.

C. An offer for part of the additional space affects the parties' rights and obligations only to the part of the additional space identified in the offer. Rights and obligations to parts of the additional space not identified in the offer are not affected. An offer to renew a lease for the additional space from a tenant occupying the additional space is not an offer to lease the additional space for the purposes of this addendum.

D. Special Provisions:

Landlord:_____

By:_____

By (signature):

Printed Name:_____

Title:_____

Tenant:_____

By:_____

By (signature):

Printed Name:_____

Title:_____

By:_____

By (signature):

Printed Name:_____

Title:_____

By:_____

By (signature):

Printed Name:_____

Title:_____